

Case :- WRIT - C No. - 42562 of 2019

Petitioner :- M/S Hind Agro Pvt. Ltd.

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Shamim Ahmed, J.

This writ petition has been filed, *inter alia*, for the following reliefs :-

"(i). Issue a writ, order or direction in the nature of certiorari quashing the order dated 09.12.2019 No. 8540 issued by the Executive Engineer, Electricity Distribution Division IIIrd, Dakshinanchal Vidyut Vitran Nigam Ltd. Lal Diggi, Aligarh permanently disconnecting the Electricity Connection No. 447001727 of 2800 K.V.A and issuing recovery order for the recovery of Rs. 4,41,37,054/- (Four Crore Fourty one lakh, thirty seven thousand and fifty four)."

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code,

2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days or till the matter is decided by the authority concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

It is made clear that in case the petitioner does not approaches the authority concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 20.12.2019.

Vinod.